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File No.: EXP202401789

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On January 30, 2024, a complaint was filed with entry registration number ***NUMBER.1 before the Spanish Agency for Data Protection against PROYECTO POBLENOU MAR, S.L.U. with NIF B67470864 (hereinafter, the complained party or Proyecto Poblenou Mar). The reasons for the complaint are as follows:

The complainant has repeatedly received phone calls on her mobile line ***PHONE.1 from a real estate agency. She has requested that they delete her data from their databases, as she is not interested in any of their services. However, she continues to receive calls and claims that they have even knocked on her door. The last call occurred on January 30, 2024 (the date the complaint was filed with the Spanish Agency for Data Protection, AEPD), which she did not answer.

Along with the complaint, she submits the following documents:

- Telephone bill proving ownership of the receiving line.
- Screenshot showing the receipt of a missed phone call on 30/01/2024 at 10:37 hours, made from the calling line ***PHONE.2.
- Recording of a call made by the complainant to the real estate agency, after receiving the missed call. The call is transferred to an employee of the real estate agency, whom the complainant addresses by name. In this call, she insists that they stop calling her, states that she is not interested in their services, and requests that they delete her personal data. The employee refers to the valuation of a property; she denies having requested a valuation and insists that they delete her personal data.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not acknowledged by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 13/02/2024, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on 14/02/2024. In this notification, she was reminded of her obligation to interact electronically with the Administration, and she was informed of the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

On 07/05/2024, a written response was received from the complained party in which they state that they have no record of receiving a request for the exercise of the right to erasure from the complainant. Proyecto Poblenou Mar indicates that the complainant's mobile phone number was collected in one of their offices through the property owner, who requested a valuation of the property and verbally stated that she was duly authorized to provide that contact information.

They understand that the complainant may have changed her mind and, therefore, have proceeded to completely delete her data. Confirming that her data has been erased and that all databases of the company are inactive.

Along with their written response, they provide the property valuation report. In the section related to the property data, the complainant's mobile phone number is listed.

THIRD: On April 30, 2024, in accordance with Article 65 of the LOPDGDD, the complaint was admitted

for processing, having passed three months since it was filed with the AEPD.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), it is

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competent to resolve these investigative proceedings is the Director of the Spanish Agency for Data Protection.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the powers attributed to it by other laws."

II

Article 66.1.b) of the General Telecommunications Law (LGTel) Law 11/2022, of June 28, provides as follows:

"Article 66. Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories.

1. Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of publicly available interpersonal communication services based on numbering shall have the following rights:

(...)

b) not to receive unwanted calls for commercial communication purposes, unless there is prior consent from the user themselves to receive such commercial communications or unless the communication can be covered by another basis of legitimacy provided for in Article 6.1 of Regulation (EU) 2016/679 on the processing of personal data.

(...)"

In the case examined, the performance of a commercial call to the complainant has not been accredited.

As highlighted in the complaint, on January 31, 2024, at 10:37, the complainant received a missed call from the complained party through the number ***TELÉFONO.2. The aforementioned call was not completed, as it was not answered by the complainant.

Along with the complaint, a recording of a subsequent phone call made that same morning to the real estate agency has been provided, the content of which has been reflected in the first fact of this resolution.

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It is also necessary to highlight that, as a result of the transfer of the complaint and request for

information by the AEPD, the complained party claims to have proceeded to delete the contact details of the complainant, as requested by the complainant in the recording of the call submitted along with the complaint.

In this regard, Article 65.6 of the LOPDGDD "Admission to processing of complaints" states:

"6. After admission to processing, if the data controller or processor demonstrates that they have taken measures to comply with the applicable regulations, the Spanish Agency for Data Protection may resolve to archive the complaint when, in the specific case, circumstances advise the adoption of other more moderate or alternative solutions to corrective action, provided that prior investigative proceedings or any of the procedures regulated in this organic law have not been initiated."

III

Conclusion

Given that the complained party has taken measures to address the complainant's request for opposition and deletion of their personal data, the archiving of the complaint is appropriate, in accordance with the provisions of Article 65.6 of the LOPDGDD.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

By the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to PROYECTO POBLENOU MAR, S.L.U. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Director of the Spanish Agency for Data Protection

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